

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Aliza Klingenstein	Team: Squad #7	CCRB Case #: 202102994	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 05/17/2021 7:36 AM	Location of Incident: In front of § 87(2)(b)	Precinct: 111	18 Mo. SOL 11/17/2022	EO SOL 11/17/2022	
Date/Time CV Reported Tue, 05/18/2021 9:53 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 05/18/2021 9:53 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Sean Little	1201	950758	111 PCT
2. POF Sharna Durham	05647	934806	111 PCT
3. POM Andy Postelnicu	18335	962025	111 PCT
4. POM James Hu	18657	943378	111 PCT
5. POM Christian Castro	29002	963442	111 PCT
6. POM Scott Palmese	14294	961062	111 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POF Sharna Durham	Abuse: Police Officer Sharna Durham forcibly removed § 87(2)(b) to the hospital.	
B.POM Andy Postelnicu	Abuse: Police Officer Andy Postelnicu forcibly removed § 87(2)(b) to the hospital.	
C.POF Sharna Durham	Force: Police Officer Sharna Durham used physical force against § 87(2)(b)	
D.POM Andy Postelnicu	Force: Police Officer Andy Postelnicu used physical force against § 87(2)(b)	
E.POF Sharna Durham	Abuse: Police Officer Sharna Durham refused to provide her name to § 87(2)(b)	
F.POM Andy Postelnicu	Abuse: Police Officer Andy Postelnicu refused to provide his name to § 87(2)(b)	
G.POM Christian Castro	Abuse: Police Officer Christian Castro refused to provide his name to § 87(2)(b)	
H.POM Scott Palmese	Abuse: Police Officer Scott Palmese refused to provide his name to § 87(2)(b)	
I.SGT Sean Little	Abuse: Sergeant Sean Little refused to provide his name to § 87(2)(b)	
J.POM James Hu	Abuse: Police Officer James Hu refused to provide his name to § 87(2)(b)	
K.POF Sharna Durham	Abuse: Police Officer Sharna Durham refused to provide her shield number to § 87(2)(b)	

Officer(s)	Allegation	Investigator Recommendation
L.POM Andy Postelnicu	Abuse: Police Officer Andy Postelnicu refused to provide his shield number to § 87(2)(b)	
M.POM Christian Castro	Abuse: Police Officer Christian Castro refused to provide his shield number to § 87(2)(b)	
N.POM Scott Palmese	Abuse: Police Officer Scott Palmese refused to provide his shield number to § 87(2)(b)	
O.SGT Sean Little	Abuse: Sergeant Sean Little refused to provide his shield number to § 87(2)(b)	
P.POM James Hu	Abuse: Police Officer James Hu refused to provide his shield number to § 87(2)(b)	
Q.POF Sharna Durham	Abuse: Police Officer Sharna Durham failed to provide § 87(2)(b) with a business card.	
R.POM Andy Postelnicu	Abuse: Police Officer Andy Postelnicu failed to provide § 87(2)(b) with a business card.	
S.POM Christian Castro	Abuse: Police Officer Christian Castro failed to provide § 87(2)(b) with a business card.	
T.POM Scott Palmese	Abuse: Police Officer Scott Palmese failed to provide § 87(2)(b) with a business card.	
U.SGT Sean Little	Abuse: Sergeant Sean Little failed to provide § 87(2)(b) with a business card.	
V.POM James Hu	Abuse: Police Officer James Hu failed to provide § 87(2)(b) with a business card.	
§ 87(4-b) § 87(2)(g)		
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§ 87(4-b) § 87(2)(g)		

Case Summary

On May 18, 2021, § 87(2)(b) filed this complaint directly with Inv. Klingenstein, who he knew from previous complaints he has made (§ 87(2)(b)).

On May 17, 2021, at approximately 7:36 a.m. outside of § 87(2)(b) in Queens, Police Officer Sharna Durham and Police Officer Andy Postelnicu, both of the 111th Precinct, followed § 87(2)(b) to the front of his residence after his neighbor, § 87(2)(b) called 911 and complained of harassment. PO Durham and PO Postelnicu instructed § 87(2)(b) to stay away from § 87(2)(b)'s residence and determined he needed to be psychologically evaluated (**Allegations A&B: Abuse of Authority**, § 87(2)(g)). § 87(2)(b) attempted to run, and PO Durham and PO Postelnicu allegedly tackled him to the ground (**Allegations C&D: Force**, § 87(2)(g)). Police Officer Christian Castro, Police Officer Scott Palmese, Sergeant Sean Little, and Police Officer James Hu, all of the 111th Precinct, arrived on scene and waited for EMS. § 87(2)(b) allegedly requested the officers' names (**Allegations E-J: Abuse of Authority**, § 87(2)(g)), allegedly requested the officers' shield numbers (**Allegations K-P: Abuse of Authority**, § 87(2)(g)), and stated that he wanted all the officers' business cards (**Allegations Q-V: Abuse of Authority**, § 87(2)(g)). EMT § 87(2)(b) and EMT § 87(2)(b) arrived and removed § 87(2)(b) to the hospital.

§ 87(4-b) § 87(2)(g)

Three BWC videos were used to analyze the above allegations (**Board Review 01-03**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Sharna Durham forcibly removed § 87(2)(b) to the hospital.

Allegation (B) Abuse of Authority: Police Officer Andy Postelnicu forcibly removed § 87(2)(b) to the hospital.

§ 87(2)(b) testified (**Board Review 04**) that he went to § 87(2)(b)'s residence located at § 87(2)(b) in Queens to check for scratches on his parked vehicle. § 87(2)(b) and § 87(2)(b) have an ongoing contentious relationship as neighbors and often call the police on each other. In the past, § 87(2)(b) has referred to § 87(2)(b) as "bipolar" and "EDP" when calling 911. On this day, § 87(2)(b) stood next to his vehicle and did not say anything, while § 87(2)(b) laughed at him, activated his own vehicle's alarm, and threatened to call the police. § 87(2)(b) did not know what § 87(2)(b) stated on the phone but approximately 10-15 minutes later, two officers arrived. § 87(2)(b) walked towards his residence located approximately 100-150 feet away. The officers followed § 87(2)(b) to the front of his residence, tackled him to the ground, and placed him in handcuffs. Officers immediately lifted § 87(2)(b) off the ground, strapped him to a stretcher, and brought him inside an ambulance. § 87(2)(b) did not recall if the EMTs spoke to him or any officers on scene prior to escorting him into the ambulance. The decision to remove him to the hospital felt like a foregone conclusion without any discussion.

§ 87(2)(b) testified (**Board Review 05**) that he became familiar with Police Officer Miguel Mora of the 111th Precinct from his involvement in § 87(2)(b) and § 87(2)(b)'s recurring disputes. PO Mora suggested § 87(2)(b) use the term, "EDP/bipolar," when calling the police on § 87(2)(b) so that an ambulance would arrive to

the scene faster.

In the recording of § 87(2)(b)'s call to 911 (**Board Review 06**) at minute mark 00:25, he describes his emergency as, "I have a known EDP bipolar gentleman standing by my car and he's playing with my doorknobs because the alarm keeps going off." § 87(2)(b) states § 87(2)(b) is disturbing the neighbors and may be breaking things inside his vehicle. At 1:00, the operator states she will connect § 87(2)(b) to EMS, and he responds, "Let the police decide if he needs to go to the hospital, not me. I'm not going to make that decision."

In PO Durham's BWC (**Board Review 01**), PO Durham and PO Postelnicu determine § 87(2)(b) needs to be psychologically evaluated when he attempts to return to § 87(2)(b)'s residence after the officers told him not to. At minute mark 1:43, PO Durham states to PO Postelnicu, "He's gonna keep going over there. We're gonna be here all day." At 2:34, PO Postelnicu states, "We have to... He's gonna do this all day. He needs to be evaluated." PO Durham and PO Postelnicu observe § 87(2)(b)'s behavior, and at 2:54, PO Durham states, "We're gonna be here all day if we don't just take him. I can't be bothered."

In PO Postelnicu's BWC (**Board Review 02**) at minute mark 02:38, PO Durham and PO Postelnicu handcuff § 87(2)(b) outside his residence and PO Castro and PO Palmese arrive on scene. Upon their arrival, PO Postelnicu states, "He needs to be evaluated," and PO Durham states, "He needs to be EDP'd." At 02:48, PO Durham states into her radio, "One boy no further... Just need a bus." All officers deactivate their BWCs upon the arrival of EMS, and no BWC footage captures the interaction between § 87(2)(b) and the EMTs.

PO Durham testified (**Board Review 07**) that on the day of the incident, she responded to a call for a crime in progress, and PO Postelnicu testified (**Board Review 08**) that he responded to a call for harassment. When they arrived, § 87(2)(b) stated § 87(2)(b) had repeatedly sat atop and descended his vehicle, causing the alarm to sound. Neither PO Durham nor PO Postelnicu observed evidence of the harassment or believed § 87(2)(b) had done anything atop the vehicle besides sit. PO Durham determined there was not probable cause to arrest § 87(2)(b) and that the appropriate action was to file a police report. PO Durham testified that the officers could have issued § 87(2)(b) a summons, but she decided against it because she did not witness the harassment. On the report, PO Durham categorized the violation as harassment instead of aggravated harassment because she was not aware of any threats made by § 87(2)(b). § 87(2)(b) walked towards his residence and the officers followed, as PO Durham intended to speak to § 87(2)(b) about what happened and then leave the scene. Both officers observed § 87(2)(b) attempt to return to § 87(2)(b)'s residence and the officers instructed him to leave. PO Durham testified that § 87(2)(b) yelled profanities at the officers, although she did not recall what he said. PO Postelnicu testified that § 87(2)(b) spoke made-up languages and stated, "Shoot me! Death by cops!" before walking away. PO Durham testified that the officers could have arrested § 87(2)(b) for aggravated harassment if he continued towards § 87(2)(b)'s residence, but PO Durham did not recall if this was communicated to him. § 87(2)(b) appeared to comply with the officers' instructions, until he began a second attempt to return. After watching her BWC footage, PO Durham testified that at this point in the incident, she believed § 87(2)(b) needed to be mentally evaluated because he was not rational, given that he acted in direct opposition of the officers' orders. PO Postelnicu testified that at this point, he believed § 87(2)(b) needed to be mentally evaluated because he did not listen to the officers, spoke in different languages, and stated, "Shoot me," when the officers tried to speak to him. PO Durham did not recall who called for an ambulance, and PO Postelnicu testified that PO Durham called for the ambulance. PO Durham testified that she deactivated her BWC when she approached Sgt. Little because she intended to explain what had occurred prior to his arrival, and BWC is not meant to record conversations with supervisors. PO Postelnicu testified that he deactivated his BWC when EMS arrived on scene and § 87(2)(b) was in handcuffs because Sgt. Little instructed him to do so.

Sgt. Little testified (**Board Review 09**) that PO Durham and PO Postelnicu decided § 87(2)(b) needed to be removed to the hospital prior to his arrival on scene, but that he believed § 87(2)(b)'s behavior was a safety concern. This was because § 87(2)(b) maintained an aggressive demeanor and way of speaking to the officers, although Sgt. Little did not recall what he said. § 87(2)(b) stood still with the officers but tightened his arms when officers refastened his handcuffs. Neither officer told Sgt. Little that § 87(2)(b) had been a danger to himself or anyone else. PO Durham testified that when the EMTs arrived, she stated § 87(2)(b) needed to be evaluated because he and his neighbor engaged in constant confrontation, he had spoken in languages other than English, and he had been uncooperative. Over the course of the incident, PO Durham did not observe § 87(2)(b) say or do anything to indicate he was going to harm himself or others. PO Postelnicu never believed § 87(2)(b) would harm himself, but he questioned what § 87(2)(b) was capable of and believed he could have possibly harmed someone else, given that he paced, yelled, and spoke different languages. PO Durham testified that the EMTs told her, "Okay," and removed § 87(2)(b) to the hospital.

EMT § 87(2)(b) and EMT § 87(2)(b) both testified that it was their decision to remove § 87(2)(b) to the hospital. EMT § 87(2)(b) testified (**Board Review 10**) that he and EMT § 87(2)(b) decided this because they believed § 87(2)(b) would continue to behave aggressively, as he yelled and disagreed with the officers, and that if they did not remove him, the EMTs would likely be called back to the scene. EMT § 87(2)(b) testified (**Board Review 11**) that the decision was because § 87(2)(b) was agitated, uncooperative, refused to answer questions, had a psychological history, and stated he was not taking his medication [BWC does not capture any information regarding whether § 87(2)(b) was taking medication]. Generally, when EMT § 87(2)(b) arrived on scene and saw a civilian in handcuffs, he took it as an indication that the civilian had been uncooperative with officers. In the past, EMT § 87(2)(b) treated patients who were significantly more agitated and potentially violent than § 87(2)(b) who had not been in handcuffs when EMT § 87(2)(b) arrived. EMT § 87(2)(b) stated he did not receive direction from any officers on scene, and EMT § 87(2)(b) stated he did not feel any pressure from officers when making the decision.

Patrol Guide Procedure 221-13 (**Board Review 12**) instructs officers to request the response of ambulance personnel when they reasonably believe that an apparently mentally ill or emotionally disturbed person is conducting himself in a manner likely to cause injury to himself or others.

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

Allegation (C) Force: Police Officer Sharna Durham used physical force against § 87(2)(b)

Allegation (D) Force: Police Officer Andy Postelnicu used physical force against § 87(2)(b)

§ 87(2)(b) testified (**Board Review 04**) that PO Durham and PO Postelnicu tackled him to the ground outside of his residence. § 87(2)(b) did not recall which officer made physical contact with him first and was unable to provide additional details, but both officers threw him on the grass so that he landed face-down.

Footage from PO Postelnicu's BWC (**Board Review 02**) shows the officers' apprehension of § 87(2)(b). At minute mark 1:04, PO Durham approaches § 87(2)(b) as he briskly changes directions and runs towards his residence located past PO Postelnicu. At 1:08, PO Postelnicu runs towards § 87(2)(b) and blocks his path. Both officers make contact with § 87(2)(b) at 1:11 and attempt to handcuff him before § 87(2)(b) appears to shift his weight backward and fall to the ground in a sitting position at 1:13. PO Durham maintains her grip on § 87(2)(b)'s arms and is pulled to the ground, landing on her stomach at 1:14.

PO Durham's and PO Postelnicu's statements are consistent with the BWC. PO Durham testified (**Board Review 07**) that when she and PO Postelnicu apprehended § 87(2)(b) in front of his residence, she attempted to handcuff him, but he yanked his body away and repeatedly changed directions to avoid her. PO Postelnicu testified (**Board Review 08**) that he stood in front of § 87(2)(b) and instructed him to stop. PO Durham testified that she attempted to handcuff § 87(2)(b) but he pulled his weight downward, causing both officers and § 87(2)(b) to fall to the ground. PO Postelnicu did not know of anything that caused § 87(2)(b) to fall other than him pulling his own weight to the ground.

§ 87(2)(g)

Allegation (E) Abuse of Authority: Police Officer Sharna Durham refused to provide her name to § 87(2)(b)

Allegation (F) Abuse of Authority: Police Officer Andy Postelnicu refused to provide his name to § 87(2)(b)

Allegation (G) Abuse of Authority: Police Officer Christian Castro refused to provide his name to § 87(2)(b)

Allegation (H) Abuse of Authority: Police Officer Scott Palmese refused to provide his name to § 87(2)(b)

Allegation (I) Abuse of Authority: Sergeant Sean Little refused to provide his name to § 87(2)(b)

Allegation (J) Abuse of Authority: Police Officer James Hu refused to provide his name to § 87(2)(b)

Allegation (K) Abuse of Authority: Police Officer Sharna Durham refused to provide her shield number to § 87(2)(b)

Allegation (L) Abuse of Authority: Police Officer Andy Postelnicu refused to provide his shield number to § 87(2)(b)

Allegation (M) Abuse of Authority: Police Officer Christian Castro refused to provide his

shield number to § 87(2)(b)

Allegation (N) Abuse of Authority: Police Officer Scott Palmese refused to provide his shield number to § 87(2)(b)

Allegation (O) Abuse of Authority: Sergeant Sean Little refused to provide his shield number to § 87(2)(b)

Allegation (P) Abuse of Authority: Police Officer James Hu refused to provide his shield number to § 87(2)(b)

Allegation (Q) Abuse of Authority: Police Officer Sharna Durham failed to provide § 87(2)(b) with a business card.

Allegation (R) Abuse of Authority: Police Officer Andy Postelnicu failed to provide § 87(2)(b) with a business card.

Allegation (S) Abuse of Authority: Police Officer Christian Castro failed to provide § 87(2)(b) with a business card.

Allegation (T) Abuse of Authority: Police Officer Scott Palmese failed to provide § 87(2)(b) with a business card.

Allegation (U) Abuse of Authority: Sergeant Sean Little failed to provide § 87(2)(b) with a business card.

Allegation (V) Abuse of Authority: Police Officer James Hu failed to provide § 87(2)(b) with a business card.

§ 87(2)(b) testified (**Board Review 04**) that after he was handcuffed and additional officers arrived on scene, he repeated three to five times that he wanted all the officers' names, shield numbers, and business cards. No officer responded or provided this information. At the time of his interview, § 87(2)(b) provided Sgt. Little's name and stated PO Durham's name as "Officer Dunham," both of which he learned from prior encounters with the officers. § 87(2)(b) did not know the other officers' names at the time he filed this complaint.

Footage from PO Hu's BWC (**Board Review 03**) captures § 87(2)(b)'s request for business cards. At minute mark 2:10, § 87(2)(b) states, "I want all your business cards. I want your business cards, everybody." At this point, the officers' struggle with § 87(2)(b) is over and § 87(2)(b) stands handcuffed and surrounded by six members of service while they wait for EMS. In response to § 87(2)(b) PO Durham states at 2:12, "No problem. You sure can have it." No other members of service respond, and no one provides a business card. At 2:31, § 87(2)(b) repeats his request three times, but no officers respond. As captured on BWC, no exigent circumstances or safety concerns exist at the time § 87(2)(b) makes this request, as he is handcuffed, surrounded by six officers, and maintains a calm physical demeanor at the time. BWC footage does not capture a request for the officers' names or shield numbers. BWC is comprehensive for the duration of the incident between the arrival of additional officers to the arrival of EMS.

PO Durham testified (**Board Review 07**) that § 87(2)(b) requested her name and shield number and all the officers' business cards. PO Durham responded, "Okay, no problem," but she did not provide this information because she was dealing with § 87(2)(b) at the time he asked, and she did not remember to do so later. [BWC shows that at the time § 87(2)(b) made the request, PO Durham was not engaged in any police action other than overseeing § 87(2)(b) and waiting for EMS.]

PO Postelnicu testified (**Board Review 08**) that he did not hear § 87(2)(b)'s request because he stood behind § 87(2)(b) was out of breath, and was searching § 87(2)(b) when he asked. If PO Postelnicu had heard the request, he would have provided his business card.

PO Castro testified (**Board Review 13**) that he did not provide his business card to § 87(2)(b) out of concern for his and his fellow officers' safety, as § 87(2)(b) was being handcuffed when he made the request and the priority was to remove him to the hospital. [BWC shows that officers had finished handcuffing § 87(2)(b) at the time he made the request.]

PO Palmese testified (**Board Review 14**) that he did not recall § 87(2)(b)'s request for business cards, but if he had been aware of it, he would have provided one.

Sgt. Little testified (**Board Review 09**) that he did not provide a business card because he felt it was neither safe nor necessary when § 87(2)(b) was handcuffed and verbally hostile towards the officers. Because PO Durham and PO Postelnicu had felt it necessary to handcuff § 87(2)(b) prior to Sgt. Little's arrival, Sgt. Little judged § 87(2)(b) to be a safety concern to himself and the officers, and therefore believed that providing him with a business card was neither a priority nor necessary.

PO Hu testified (**Board Review 15**) that § 87(2)(b) requested all the officers' names, shield numbers, and business cards. PO Hu stated his name and shield number but did not provide a business card because department policy prohibited officers from providing business cards to civilians who were considered prisoners or EDPs, and at the time of his request, § 87(2)(b) was both in handcuffs and considered an EDP. PO Hu learned this policy during a previous roll call training, but he did not recall who administered it or when it occurred.

NYC Administrative Code 14-174 (**Board Review 16**) requires all members of service to provide business cards to any person who requests such information, absent exigent circumstances or imminent danger. This code does not discuss civilians considered to be prisoners or emotionally disturbed persons.

§ 87(2)(g)

§ 87(2)(g)

§ 87(4-b) § 87(2)(g)

§ 87(4-b) § 87(2)(g)

[illegible]

[REDACTED]

Civilian and Officer CCRB Histories

- § 87(2)(b)
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]

- PO Durham, a 17-year member of service, has been a subject in three other CCRB complaints totaling five allegations, none of which were substantiated.
 - 202102959 involved allegations of Abuse of Authority: Refusal to provide name, Abuse of Authority: Refusal to provide shield number, and Abuse of Authority: Failure to provide RTKA card, all of which were unsubstantiated.
- PO Postelnicu has been a member of service for five years and this is the first CCRB complaint to which he has been a subject.
- PO Castro, a four-year member of service, has been a subject in one other CCRB complaint involving two allegations, neither of which was substantiated.
 - 202006269 involved one allegation of Force: Physical force and one allegation of Abuse of Authority: Forcible removal to the hospital, both of which were closed as complainant unavailable.
- PO Palmese, a five-year member of service, has been a subject in one other CCRB complaint involving two allegations, neither of which was substantiated.
 - 202006269 involved one allegation of Force: Physical force and one allegation of Abuse of Authority: Forcible removal to the hospital, both of which were closed as complainant unavailable.
- Sgt. Little, a 10-year member of service, § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- PO Hu, a 14-year member of service, has been the subject of seven other CCRB allegations involving 11 allegations, none of which have been substantiated.
 - § 87(2)(g) [REDACTED]
[REDACTED]
 - 201115420 involved two allegations of Abuse of Authority: Refusal to provide name/shield number and Force: Physical force. Both allegations were unfounded.
 - 200809894 involved three allegations of Abuse of Authority: Refusal to provide name/shield number (unfounded), Abuse of Authority: Stop (exonerated), and Abuse of Authority: Threat of arrest (Exonerated).

Civil and Criminal Histories

- As of October 08, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint (**Board Review 21**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
[REDACTED]

Squad: 7

Investigator: Inv. Klingenstein Inv. Aliza Klingenstein November 30, 2021
Signature Print Title & Name Date

Squad Leader: Manager Vanessa Rosen November 30, 2021
Signature Print Title & Name Date

Reviewer: _____

Signature

Print Title & Name

Date